

STATE OF NEW YORK

7131--A

2025-2026 Regular Sessions

IN SENATE

April 1, 2025

Introduced by Sen. MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the administrative code of the city of New York, in relation to establishing standards for the design and construction of all-gender bathrooms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 378 of the executive law is amended by adding a new
2 subdivision 21 to read as follows:

3 21. a. Standards for all-gender bathrooms to provide privacy and secu-
4 urity, incorporating best practices in restroom design, including but not
5 limited to:

6 (i) lockable individual toilet stalls with a minimum door height of
7 eighty-four inches and a maximum undercut of four inches;

8 (ii) no visual gaps at the sides of doors and pilasters;

9 (iii) shared sink areas positioned outside of individual toilet
10 stalls;

11 (iv) allowance for separate sinks within individual stalls; and

12 (v) installation of privacy partitions compliant with the interna-
13 tional association of plumbing and mechanical officials' standards
14 published under the IAPMO/ANSI/CAN Z124.10-2022, or the most recently
15 published version of such publication.

16 b. All-gender bathrooms may include urinals provided they are enclosed
17 within individual lockable stalls meeting the privacy standards in para-
18 graph a of this subdivision.

19 c. (i) The department shall promulgate or amend regulations to allow
20 and facilitate the designation, installation, and use of all-gender
21 bathrooms in any use group as defined in the state building code,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 including but not limited to commercial, institutional, educational, and
2 public facilities.

3 (ii) All-gender bathrooms shall be permitted in both new construction
4 and existing structures undergoing repair, renovation, or alteration
5 work.

6 (iii) Standards developed pursuant to this subdivision shall include
7 requirements for signage and wayfinding standards to ensure clear iden-
8 tification of all-gender bathrooms while maintaining inclusivity and
9 accessibility.

10 d. For the purposes of this subdivision, "all-gender bathrooms" shall
11 mean multi-fixture toilet rooms with separate, lockable partitions and a
12 shared sink area that can be used by individuals of all gender identi-
13 ties.

14 § 2. PC 403 of chapter 4 of the plumbing code of the administrative
15 code of the city of New York is amended by adding a new section 403.5 to
16 read as follows:

17 § 403.5 All-gender bathrooms. 1. (a) All-gender bathrooms shall be
18 designed to provide privacy and security, incorporating best practices
19 in restroom design, including but not limited to:

20 (i) lockable individual toilet stalls with a minimum door height of 84
21 inches and a maximum undercut of 4 inches;

22 (ii) no visual gaps at the sides of doors and pilasters;

23 (iii) shared sink areas positioned outside of individual toilet
24 stalls;

25 (iv) allowance for separate sinks within individual stalls; and

26 (v) installation of privacy partitions compliant with the interna-
27 tional association of plumbing and mechanical officials' standards
28 published under the IAPMO/ANSI/CAN Z124.10-2022, or the most recently
29 published version of such publication.

30 (b) All-gender bathrooms may include urinals provided they are
31 enclosed within individual lockable stalls meeting the privacy standards
32 in paragraph (a) of this subdivision.

33 2. All-gender bathrooms shall be permitted in both new construction
34 and existing structures undergoing repair, renovation, or alteration
35 work.

36 3. Standards developed pursuant to this section shall include require-
37 ments for signage and wayfinding standards to ensure clear identifica-
38 tion of all-gender bathrooms while maintaining inclusivity and accessi-
39 bility.

40 4. For the purposes of this section, "all-gender bathrooms" shall mean
41 multi-fixture toilet rooms with separate, lockable partitions and a
42 shared sink area that can be used by individuals of all gender identi-
43 ties.

44 § 3. This act shall take effect on the ninetieth day after it shall
45 have become a law. Effective immediately, the addition, amendment and/or
46 repeal of any rule or regulation necessary for the implementation of
47 this act on its effective date are authorized to be made and completed
48 on or before such effective date.